

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

DOCKET NO. 25-14

WAY 2 GO CARGO CORP.,

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent.

COMPLAINANT'S CORRECTED OPENING BRIEF

Respectfully submitted,

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I. Preliminary Statement

Oak Way Cargo, LLC (“Oak Way” or “Oak US”) operated as an ocean transportation intermediary in the United States without the license the Shipping Act requires. It held itself out to the shipping public as a freight forwarder, issued house bills of lading in its own name, ran its own online freight platform, and moved more than a thousand containers for compensation, all while holding no license issued by the Federal Maritime Commission. To move that cargo, Oak Way used the FMC license of the complainant, Way2Go Cargo Corp. (“Way2Go”), and kept for itself the freight revenue that license generated.

While Oak Way claims to have acted “as an agent” for other licensed OTI’s and a Brazilian foreign-registered NVOCC, Oak Way did not charge a forwarder’s or agent’s fee; it quoted and collected ocean freight at a markup over the rates it paid the underlying carriers, keeping the difference as its own profit. That is inconsistent with the conduct of an alleged intermediary acting for another. It booked that cargo under Way2Go’s license and directed the payments into an account from which Way2Go was excluded, converting Way2Go’s licensed revenue stream into Oak Way’s own. That is the injury at the center of this case.

Way2Go does not ask the Commission to take this on inference. The violation is established by Oak Way’s own documents and the binding admissions of its corporate representative, including its own website, its invoices, its bills of lading, and its sworn deposition testimony. Where a respondent’s own records prove the case, they leave little room for dispute, and Oak Way’s do.

Oak Way’s attempt to label itself, after the fact, as the “agent” of a Brazilian entity, rests on a verbal arrangement with no revenue-sharing, and no true distinction between the two entities, and leans on a foreign registration the affiliate did not obtain until after the conduct at issue and after this action was filed. Relabeling does not convert an unlicensed carrier into a lawful one. Oak Way

continues to operate in its own name, making a cease-and-desist order not merely appropriate but necessary.

On this record, Way2Go proves each element of a violation of 46 U.S.C. § 40901(a) by a preponderance of the evidence and is entitled to relief on two fronts: reparations for the freight revenue Oak Way collected under Way2Go's license in an amount not less than \$411,347.29, and up to \$707,264.46, together with interest; and an order directing Oak Way to cease and desist from operating as an unlicensed intermediary and from misusing Way2Go's license.

II. Legal Standard

To prevail in a proceeding to enforce the Shipping Act, a complainant bears the burden of proving their allegations by a preponderance of the evidence. 5 U.S.C. § 556(d); *Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Docket No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). Under the preponderance standard, a complainant must show that their allegations are more probable than not. *Crocus Investments, LLC v. Marine Transport Logistics*, Docket No. 15-04, 3 F.M.C.2d 110, 113, 2021 WL 9204115, at *3 (FMC Aug. 18, 2021). When the party with the burden of persuasion produces sufficient evidence (characterized as a prima facie case), the burden of production shifts to the other party to produce evidence rebutting that case. *In re South Carolina State Ports Auth. for Declaratory Order*, Docket No. 94-24, 1997 WL 35451811, at *37 (FMC 1997). *See also Steadman v. SEC*, 450 U.S. 91, 101 (1981) ("Where a party having the burden of proceeding has come forward with a prima facie or substantial case, he will prevail unless his evidence is discredited or rebutted.") (quoting H.R.Rep.No. 1980, 79th Cong., 2d Sess., 37 (1946)). Inferences may be drawn from certain facts when direct evidence is not available, and circumstantial evidence alone may even be sufficient; however, such findings may not be drawn from mere speculation. *Waterman Steamship Corp. v. General Foundries Inc.*, Docket No. 93-15, 26 S.R.R. 1173, 1180, 1993 WL 13975538, at *13 (ALJ Dec. 9, 1993), adopted in relevant part, 26 S.R.R. 1424, 1994 WL 279898 (FMC June 13, 1994).

III. Oak Way Violated § 40901(a) by Holding Itself Out and Acting as an OTI Without a License.

A person in the United States may not hold oneself out or act as an ocean transportation intermediary unless that person holds a license issued by the Commission. 46 U.S.C. § 40901(a); 46 C.F.R. §§ 515.3(a), 515.31(j). To establish a violation of Section 40901(a), Complainant must show: (1) that Oak Way is a person in the United States¹; (2) that it advertised, held itself out, or acted as an ocean transportation intermediary; and (3) that it did so without holding an ocean transportation intermediary's license. *See* 46 U.S.C. § 40901(a). The record establishes each element. It also shows that Oak Way operated in its own name while concealing the license it was misusing.

An "ocean transportation intermediary" is either an ocean freight forwarder or a non-vessel-operating common carrier ("NVOCC"). 46 U.S.C. § 40102(20); 46 C.F.R. § 515.2(m). An NVOCC is a common carrier that "does not operate the vessels by which the ocean transportation is provided" and "is a shipper in its relationship with an ocean common carrier." 46 U.S.C. § 40102(17). A common carrier, in turn, is an entity that (1) holds itself out to the general public to provide transportation by water between the United States and a foreign country for compensation; (2) assumes responsibility for the transportation from the port or point of receipt to the port or point of destination; and (3) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes.² 46 U.S.C. § 40102(7); 46 C.F.R. § 515.2(e); *CMI Distribution, Inc. v. Service by Air, Inc.*, Docket No. 17-05, 3 F.M.C.2d 83, 86–87, 2021 WL 9204113, at *4 (FMC July 26, 2021).

¹ Oak Way admits that it is "a Florida limited liability company with its principal place of business located at 847 NW 119 Street, Suite 205, Miami, Florida." Answer ¶ 2. That Oak Way is a person in the United States is therefore established on the pleadings and requires no further proof.

² The use of a vessel operating on the high seas between the United States and a foreign country is "generally straightforward and seldom in question." *Worldwide Relocations, Inc. -- Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984*, Docket No. 06-01, 2012 WL 11914713, at *5 (FMC Mar. 15, 2012). Because the shipments moved by water in the foreign commerce of the United States, this element is satisfied. *See Vanasia Trading Group, Inc. v. Bilink Shipping Corp.*, Docket No. 2037(I), 2026 WL 2102013, at *16 (FMC July 14, 2026) (element met where "[e]ach of the shipments at issue moved by ocean vessel from the United States" to a foreign port).

The Commission’s methodology for deciding common-carrier status “considers the totality of circumstances and their combined effect.” *CMI*, 2021 WL 9204113, at *5 (quotation marks omitted). And “no single factor determines common carrier status.” *Id.* (citing *Rose Int’l, Inc. v. Overseas Moving Network Int’l, Ltd.*, FMC Docket No. 96-05, 2001 WL 37115381, *36 (FMC June 1, 2001)). The inquiry is fact-intensive and “looks beyond documentary labels” to the respondent’s actual conduct on the shipments at issue, recognizing that an entity may act as a common carrier on some shipments and not others. *CMI*, 2021 WL 9204113, at *8 (internal citations omitted); *Worldwide Relocations, Inc. -- Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984*, Docket No. 06-01, 2012 WL 11914713, at *5 (FMC Mar. 15, 2012) (“[I]t is the status of the carrier, common or otherwise, that dictates the ingredients of shipping documents; it is not the documentation that determines carrier status.”) (internal citations omitted). Because status follows conduct, “an entity’s conduct, not the labels it applied, determine[s] NVOCC status.” *CMI*, 2021 WL 9204113, at *11 (citing *Worldwide Relocations*, 2012 WL 11914713 at *6-7).

An entity’s subjective belief about whether it was acting as an NVOCC is “of limited relevance.” *Id.* at *7. “The Commission determines whether a carrier was holding out its services based on the carrier’s words and actions not on the shippers’ response or interpretation of those actions.” *Id.* Moreover, an entity that begins a transaction as a forwarder or agent may nonetheless “attain NVOCC status by its subsequent actions during the course of the transaction.” *Vanasia Trading Group, Inc. v. Bilink Shipping Corp.*, Docket No. 2037(I), 2026 WL 2102013, at *13 (FMC July 14, 2026) (discussing *Tienshan, Inc. v. Tianjin Hua Feng Transport Agency Co.*, Docket No. 08-04, 2011 WL 7144007, at *15 (FMC Mar. 9, 2011)). The mere use of the “agent” label does not therefore immunize conduct that is, in substance, that of an unlicensed carrier.

A. Oak Way Advertised and Held Itself Out as an OTI.

The first element is established by the record: Oak Way held itself out to the public to provide transportation by water. An entity may hold itself out “by the establishment and maintenance of tariffs, by advertisement and solicitation, and otherwise,” and “advertising and solicitations to the public are important factors” on this question. *Worldwide*, 2012 WL 11914713, at *6 (internal citations omitted). “Holding out” means a willingness to accept cargo from whoever offers it, subject to capacity; it does not require that the entity broadcast its services or market them widely. *CMI*, 2021 WL 9204113, at *7. Critically, holding out to a single customer suffices, because “[t]he public does not mean everybody all the time.” *Id.* (internal citations omitted).

Several categories of Oak Way’s conduct establish holding out. **First, Oak Way advertised and solicited ocean transportation to the shipping public.** Oak Way’s own website describes it as “a freight forwarder specializing in end-to-end shipping” that “act[s] as a link between exporters and shipping companies, ensuring that each stage of the logistics chain—from origin to destination—occurs with excellence, clarity, and predictability.” (*Sobre*, Oak Cargo, <https://oak-cargo.com/sobre/> (last visited Sept. 3, 2026) (CX0118)).

Public statements offering to arrange ocean carriage constitute holding out. *Vanasia*, 2026 WL 2102013, at *14 (website statements that respondent “can handle” ocean freight “shipments to all the corners of the earth” and “to any destination in the world” constituted holding out as an OTI); *Worldwide*, 2012 WL 11914713, at *6.

Second, Oak Way charged and collected ocean freight, rather than a forwarder’s or agent’s fee, and did so at a marked-up rate. Oak Way invoices clients a different rate than it pays the carrier (Raphael 6/12 Tr. p. 14:21-15:1 (CX0685-0686)); and makes a profit on each container it ships (Raphael 5/26 Tr. p. 86:6-12 (CX0089)).

“Charging ocean freight is indicative of carrier status rather than forwarder or agent status.” *CMI*, 2021 WL 9204113, at *6; *Worldwide*, 2012 WL 11914713, at *9-*10 & n.3 (invoice reflecting a separate, higher ocean-freight charge than the downstream NVOCC charged “appears as an ocean freight charge, not as a fee that an agent (or Ocean Freight Forwarder) would charge,” and “indicates that [the respondent] was acting as a carrier rather than an agent”). A forwarder “typically charges a fee and advances freight payments to the carrier on behalf of its customer, while an NVOCC purchases transportation from a carrier and resells it to the customer marked up at a profit.” *Vanasia*, 2026 WL 2102013, at *14. Where, as in *Vanasia*, the entity “quoted and invoiced a single freight amount that exceeded the rates it paid to the underlying ocean carrier” and “resold the transportation to its customers at a profit,” it is “holding itself out as the provider of transportation services” and not acting “solely as an agent.” *Id.* at *15.

Third, Oak Way identified itself as the carrier and operated under Way2Go’s FMC license. An entity’s own representation that it is the “carrier” is evidence of holding out. *Vanasia*, 2026 WL 2102013, at *14 (respondent “held itself out to Claimant as an NVOCC in its ... lien notice where Respondent identified itself as a carrier”). Oak Way created new shipping documents for Way2Go’s shipments, including new bills of lading bearing Oak Way’s name, received payment for those shipments from Way2Go customers, and paid any freight fees owed to common carriers so the shipments would be released at the port of destination. (Raphael 5/26 Tr. p. 63:9-64:10 (CX0066-0067); 48:1-49:13 (CX0051-0052); Exhibit “10” (CX0194-0200). Oak Way contacted common carriers to modify the shipper and notify party information on the bookings for Way2Go shipments to reflect the Oak Companies’ information instead. This was done so that Oak Way could pay the tariffs for those shipments and ensure they were released at the port. (Raphael 6/5 Tr. p. 72:6-19

(CX0521)). Oak Way admits that it used the FMC licenses of other entities to conduct its operations. (Raphael 6/5 Tr. p. 34:11-35:1 (CX0483-0484)).

That Oak Way presented ocean-transportation services to the public under a licensed NVOCC's identity is itself an act of holding out as an NVOCC; and because it was Oak Way that actually performed the carriage, and not Way2Go, the borrowed license does not supply the authorization § 40901(a) requires.

B. Oak Way Assumed Responsibility for the Transportation.

The second element asks whether Oak Way assumed responsibility for the transportation from origin to destination. 46 U.S.C. § 40102(7). The Commission again “looks beyond documentary labels” and examines conduct. *CMI*, 2021 WL 9204113, at *8. Issuing a house bill of lading is “strong evidence” of assumed responsibility. *Id.* (“[H]ad [respondent] issued house bills of lading to the Chinese suppliers, this would not be a close case.”). Nevertheless, “the absence of bills of lading is not determinative of the issue,” and “the labels that [an entity] gave its documents do not override its actions.” *Id.* at *11; *Vanasia*, 2026 WL 2102013, at *15 (“Nothing in the Shipping Act or Commission precedent requires an entity to issue its own bill of lading or appear as shipper on the carrier bill of lading before it may be found to have acted as an NVOCC.”). Indeed, “ambiguous identification of party shippers in [the shipping] documents may lead to a finding of NVOCC status.” *CMI*, 2021 WL 9204113, at *11 (internal citations omitted). Ambiguity “makes it more likely, not less, that the Commission would consider” the entity a common carrier. *Id.* at *14.

Assumption of responsibility is shown where the customer, after engaging the entity, ceased to control the goods; dealt with the entity as its “sole conduit” for the shipment and for release of the cargo; did not select or communicate with the downstream carriers; and looked solely to the entity for the transportation. *Id.* at *9-*10. It is likewise shown by “quoting ocean freight rates ..., invoicing

... ocean freight, and paying ocean freight to downstream carriers.” *Id.* at *10; *see also EuroUSA Shipping, Inc. -- Possible Violations of Section 10 of the Shipping Act of 1984 and the Commission’s Regulations*, Docket No. 06-06, 2013 WL 9808689, at *11 (FMC Sept. 10, 2013) (invoicing for ocean freight and marking up incurred charges is evidence of assuming responsibility). Above all, control over the release of the cargo is “compelling evidence” of assumed responsibility. *Vanasia*, 2026 WL 2102013, at *15 (respondent’s “undisputed authority to control release of the shipments is compelling evidence that it had assumed responsibility for the transportation and was dealing with the carrier on its own account rather than acting solely as an agent”).

Oak Way issues HBLs in Oak’s name without any FMC license or registration number. Raphael expressly confirmed that the HBLs Oak created for Way2Go shipments contain no license number. (Raphael 5/26 Tr. p. 50:6-16 (CX0053); Exhibit “10” (CX0199-0200)). Oak Way also issues invoices bearing Oak Way’s name and logo, and those invoices contain no FMC license or registration number (*Id.* p. 50:17-51:2 (CX0053-0054)). Oak Way also pays common carriers (*Id.* at 63:9-64:6 (CX0066-0067)) using a service contract for which there is no licensed NVOCC. (Raphael 6/5 Tr. p. 63:21-25 (CX0512)); Raphael 5/26 Tr. Exhibit “16” (CX0076-0077)). Oak Way told a customer that their shipment with Way2Go “was endorsed” to Oak Way and directed the customer to make their payment to Oak Way’s account instead. (Raphael 5/26 Tr. at Exhibit “11” (CX0201)). Oak Way’s own principal admitted to telling clients he sought to take responsibility for their shipments, by having Oak Way take over Way2Go’s role as a carrier, in order to maintain his reputation. (Raphael 5/26 Tr. p. 71:2-72:13 (CX0074-0075)). On this record, Oak Way “[takes] care of everything” for the customer, *CMI*, 2021 WL 9204113, at *10, and thereby assumes responsibility for the transportation within the meaning of § 40102(7).

C. Oak Way Is a Shipper in Its Relationship With the Underlying Carrier and Performs NVOCC Services.

An NVOCC is “a shipper in its relationship with an ocean common carrier.” 46 U.S.C. § 40102(17). The statutory definition of “shipper” is broad and includes not only the cargo owner but “a non-vessel-operating common carrier that accepts responsibility for payment of all charges applicable under the tariff or service contract.” 46 U.S.C. § 40102(23). An entity need not be in “contractual privity with an ocean common carrier, or be named a shipper on an ocean common carrier master bill of lading,” to satisfy this element; it is enough that the entity stands in a “shipper relationship” with a carrier. *CMI*, 2021 WL 9204113, at *12-*13.

Oak Way also performed the enumerated NVOCC services. *See* 46 C.F.R. § 515.2(k) (an NVOCC purchases transportation from a common carrier and offers it for resale; enters affreightment agreements with underlying shippers; issues bills of lading or other shipping documents; coordinates and pays for transportation; and collects freight from shippers on its own behalf). Oak Way purchases space on a carrier ship and sells it to clients at a higher rate (Raphael 6/12 Tr. p. 14:21-15:1 (CX0485-0486)), issues bills of lading, invoices for and receives freight payment from customers, and pays the carriers. (Raphael 5/26 Tr. p. 63:9-64:10 (CX0066-0067); 48:1-49:13 (CX0051-0052); Exhibit “10” (CX0194-0200)). The regulations do not require that these services be performed “on [the entity’s] own account” to count, *CMI*, 2021 WL 9204113, at *14, and performance of these services confirms Oak Way’s NVOCC status.

D. Oak Way Holds No OTI License.

It is undisputed that Oak Way did not hold an OTI license at the time of the conduct at issue. (Raphael 5/26 Tr. p. 43:17-45:13 (CX0046-0048)). Where a respondent “operat[es] as an NVOCC without a license” and it is “undisputed that [it] lacks an OTI license,” the Commission finds a

violation of § 40901(a). *CMI*, 2021 WL 9204113, at *15; *accord Vanasia*, 2026 WL 2102013, at *25 (claimant “established that Respondent violated 46 U.S.C. § 40901(a) and 46 C.F.R. § 515.31(j) by operating as an OTI without the required FMC license or registration”).

Because Oak Way held itself out to provide ocean transportation, assumed responsibility for that transportation, moved the cargo by vessel in the foreign commerce of the United States, and functioned as a shipper in relation to the underlying carrier, all while holding no license, Oak Way acted as an ocean transportation intermediary without a license in violation of 46 U.S.C. § 40901(a). Way2Go has proved that violation by a preponderance of the evidence.

IV. Complainant Is Entitled To Reparations Under 46 U.S.C. § 41305.

The Shipping Act directs that the Commission “shall direct the payment of reparations to the complainant for actual injury caused by a violation of this part.” 46 U.S.C. § 41305(b). Entitlement to reparations turns on three settled principles: “(a) damages must be the proximate result of violations of the statute in question; (b) there is no presumption of damage; and (c) the violation in and of itself without proof of pecuniary loss resulting from the unlawful act does not afford a basis for reparation.” *MAVL Capital Inc. v. Marine Transp. Logistics, Inc.*, Dkt. No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022) (internal citations omitted). Reparations are awarded only for actual damages “compensation for the actual loss or injuries sustained by reason of the wrongdoing,” which a complainant must prove to a reasonable degree of certainty. *Cal. Shipping Line, Inc. v. Yangming Marine Transp. Corp.*, Dkt. No. 88-15, 1990 WL 427466, at *23 (FMC Oct. 19, 1990). Reasonable certainty “does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained.” *MAVL Capital Inc.*, 2022 WL 2209421, at *3. Complainant’s proof, drawn almost entirely from Oak Way’s own records and the binding admissions of its corporate representative, satisfies each element.

A. Reparations are available for Oak Way's § 40901(a) violation.

Section 41305(b) authorizes reparations for “actual injury caused by a violation of this part” and § 40901 lies within the same Part A of Subtitle IV. The Commission’s decisions declining reparations for unlicensed operation confirm rather than defeat Way2Go’s entitlement, because each turns on a causal gap that is absent here. In *CMI Distribution, Inc. v. Service by Air, Inc.*, the Commission found that the respondent violated § 40901(a) by operating as an NVOCC without a license but “did not ... award any reparations based on this violation”; the reparations it awarded rested entirely on a separate violation of § 41104(a)(2)(A) for charging rates not contained in a published tariff. *CMI Distribution*, Dkt. No. 17-05, 2021 WL 9204113, at *15, 3 F.M.C.2d 83, 97 (FMC July 26, 2021). Likewise, in *Vanasia Trading Group, Inc. v. Bilink Shipping Corp.*, the claimant established a § 40901(a) violation, but the Commission held that “reparations are not available on this basis” because the claimant proved no “actual injury resulting from Respondent’s unlicensed status.” *Vanasia*, Dkt. No. 2037(I), 2026 WL 2102013, at *27 (FMC July 14, 2026). In each, the complainant was a customer whose loss, if any, flowed from other conduct, such as untariffed overcharges, or the reallocation of freight payments, and not from the counterparty’s unlicensed activity, so no injury attached to the § 40901(a) violation itself.

Way2Go’s posture is different in kind, as it is not a customer complaining of overcharges. Way2Go is a licensed intermediary whose FMC credential Oak Way appropriated. Way2Go proves by Oak Way’s own admission and production, that the freight revenue Oak Way collected on shipments conducted under License No. 027779, is the direct product of the unlicensed operation itself. Oak Way earned that revenue only by holding itself out and operating as an ocean transportation intermediary to carriers and customers who contracted for the shipments to be completed under Way2Go’s license; the violation and the revenue-producing conduct are the same

acts. The injury is therefore “caused by” the § 40901(a) violation within the meaning of § 41305(b), and the no-injury rationale of *CMI* and *Vanasia* does not apply here.

A complainant may not recover merely by showing that a respondent engaged in unlawful conduct and that money changed hands. *Samsung Elecs. Am., Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2026 WL 2427726, at *12–*13 (FMC Aug. 13, 2026) (an unlawful practice “was the proximate cause of damage ... only where the record contained sufficient evidence of that damage, based on a reasonable level of container-specific analysis”); *Samsung Electronics America, Inc., Complainant v. Zim Integrated Shipping Services Ltd., Respondent.*, 2025 WL 1255544, at *78 (ALJ April 22, 2025) (reparations must be shown “on a shipment-by-shipment basis”). Way2Go satisfies that standard through a documented chain assembled from Oak Way’s own productions and the sworn admissions by its corporate representative.

- (i) Oak Way issued invoices, in its own name, for Way2Go’s shipments, and directed customers to pay Oak Way for Way2Go’s shipments. (Raphael 6/12 Tr. p. 11:8-19 (CX0482); (Raphael 5/26 Tr. p. 74:21-75:2 (CX0077-0078). The sum total of the amounts invoiced by Oak Way to customers for Way2Go shipments totals \$707,264.46. *See* Complainant’s Demonstrative Spreadsheet II (CX7014) listing the amount of each invoice produced by Respondent in discovery that corresponds to a shipment identified in Way2Go Shipment Lists (CX0213; CX0214).
- (ii) Oak Way produced proofs of payment including bank statement excerpts, wire confirmations, deposits, and checks made out to Oak Way Cargo (the “Payment Confirmations”). (Raphael 5/26 Tr. p. 87:24-88:17 (CX0090-0091); 91:20-93:4 (CX0094-0096); Exhibit “14” (CX0215-0256); Exhibit “15” (CX0257-0275)). Based

on the sum of amounts reflected in the Payment Confirmations, Oak Way received \$411,347.29 from customers for Way2Go's shipments.

- (iii) The shipment numbers and client names on those Payments Confirmations correspond to the shipments identified in the Way2Go Shipment Lists and invoices produced by Respondent in discovery. *See* Complainant's Demonstrative Spreadsheet I (CX0934) listing the amount of each Payment Confirmation and identifying for each any corresponding invoice or other shipment information produced by Respondent in discovery.
- (iv) Oak Way confirmed that the funds identified by the Payment Confirmations were deposited into Oak Way's bank account. (Raphael 6/12 Tr. p. 11:8-19 (CX0682)).

The record corroborates the diversion at its source. Alves executed amendments to Way2Go's own CMA service contract (No. 25-1534) to keep moving the very containers that "Oak was finalizing the release for on behalf of Way2Go." (Raphael 6/5 Tr. p. 64:1-65:8 (CX0513-0514)). These were Way2Go's shipments, moving under Way2Go's contract and license, with the resulting freight rerouted to Oak Way's account.

This proof is stronger than what the Commission has already held sufficient. In *Samsung*, the Presiding Officer found proximate cause established for the charges documented in the respondent's own internally prepared spreadsheet, treating that party record as prima facie evidence the respondent had failed to rebut. *SM Line Corp.*, 2026 WL 2427726, at *17-*19. Here Way2Go relies on Oak Way's own invoices, its own payment records, its own shipment spreadsheets, and an affirmative admission by its corporate representative that the shipments were taken from Way2Go. Each dollar claimed is tied to an identified shipment.

B. Way2Go's actual injury is \$411,347.29.

The measure of Way2Go's actual injury is the freight revenue Oak Way collected on shipments conducted under Way2Go's license and diverted into the account from which Way2Go was excluded. The documented proofs of payment fix that amount at \$411,347.29. (Complainant's Demonstrative Spreadsheet (CX0934)). Because that figure is drawn from Oak Way's own payment records and tied shipment by shipment to identified bookings, it is proved to a reasonable certainty.

Oak Way bears the burden of proving any offsetting cost, and its failure to produce reliable evidence of a matter within its exclusive control warrants an inference that no such offset can be credited. *See JIMEX USA, Inc. v. Prestige Shipping, Inc.*, Dkt. No. 2053(I), 2026 WL 2427728, at *6-*8 (FMC Aug. 13, 2026). Moreover, because Oak Way had no lawful authority to operate as an ocean transportation intermediary at all, the freight it collected on Way2Go's shipments belonged to Way2Go, and Oak Way's costs of conducting that unlawful business do not diminish Way2Go's injury.

At a minimum, the award should reach the \$411,347.29 in documented receipts. The full \$707,264.46 that Oak Way invoiced is recoverable as well: the \$295,917.17 difference reflects amounts Oak Way billed but for which it did not produce corresponding payment records, and its failure to produce those records, evidence within its exclusive control, supports an adverse inference that those invoices were likewise collected. *JIMEX*, 2026 WL 2427728, at *7-*8.

C. Interest.

The Shipping Act includes within "actual injury" the "loss of interest at commercial rates compounded from the date of injury." 46 U.S.C. § 41305(a); *see* 46 C.F.R. § 502.253. Where, as here, the injury arises from multiple shipments over a period, the Commission fixes the date of injury at the midpoint of that period. *SM Line Corp.*, 2026 WL 2427726, at *19-*20; *Color Brands, LLC v. AAF Logistics, Inc.*, 2024 WL 4034609, at *5-*6 (ALJ Aug. 27, 2024). The diverted payments

span April 28, 2025 (CX0900) through July 29, 2025 (CX0927); the midpoint date of injury is June 13, 2025. Interest should accrue from that date and compound to the date of the Commission's order. 46 C.F.R. § 502.253.

D. Prevailing Party Entitlement to Fees.

As the prevailing party, Way2Go may, upon petition, be awarded reasonable attorney fees. 46 U.S.C. § 41305(e); 46 C.F.R. § 502.254. Way2Go respectfully reserves its right to petition for fees upon a determination of liability.

V. The Commission Should Order Oak Way to Cease and Desist from Operating as an Unlicensed OTI And From Misusing Way2Go's License.

The Commission has authority under the Shipping Act to order a respondent to cease and desist from violating the Act and the Commission's regulations. *Bimsha Int'l v. Chief Cargo Serv. & Kaiser Apparel, Inc.*, Dkt. No. 10-08, 2013 WL 9808692, at *7 (FMC Sept. 4, 2012). Such an order is appropriate where "a respondent's unlawful conduct is likely to continue or resume." *CMI Distribution, Inc. v. Service by Air, Inc.*, Dkt. No. 17-05, 2021 WL 9204113, at *20 (FMC July 26, 2021) (internal citations omitted). This relief is warranted "when there is a reasonable likelihood or expectation that Respondent will continue or resume illegal activities." *Vanasia Trading Group, Inc.*, 2026 WL 2102013, at *28. In making that assessment, the Commission considers, among other factors, "whether [the] [r]espondent remains engaged in the regulated activity and whether there continues to be a reasonable need for such orders." *Id.* (citing *Worldwide Relocations, Inc.*, Dkt. No. 06-01, 2012 WL 11914713, at *10 (FMC Mar. 15, 2012)).

A. Oak Way remains engaged in unlicensed operation, and its withdrawal of its license application makes continuation reasonably likely.

As to the first factor, Oak Way remains engaged in the regulated activity. It continues to operate as an ocean transportation intermediary in its own name: issuing its own house bills of lading,

operating the ShipThis platform, and moving cargo for compensation across more than 1,000 shipments bearing its own “OAK” job numbers. (Raphael 6/5 Tr. p. 22:22-23:7 (CX0471-0472); Exhibit “24” (CX0550); (CX1002-7013)). This is not isolated or abandoned conduct, it is an ongoing line of business Oak Way has no intent to cease.

Second, the reasonable likelihood of continued or renewed violation exists because Oak Way holds no license and has taken no step to obtain one. To the contrary, Oak Way withdrew its pending FMC license application. (Raphael 5/26 Tr. p. 43:20-45:13 (CX0046-0048)). That withdrawal is affirmative evidence that Oak Way does not intend to bring its operations into compliance and will continue to hold itself out and operate as an unlicensed intermediary. Oak Way claims to be operating under the foreign NVOCC registration number held by Oak Brazil but admits that it operates no differently than if it were licensed. (Raphael 5/26 Tr. p. 107:25-108:14 (CX0110-0111)). Although Oak Way refers to itself as “an agency or an agent of Oak Brazil,” the arrangement is only a verbal agreement with no revenue-sharing terms (Raphael 5/26 Tr. p. 17:5-18:8 (CX0020-0021)), and Oak US remits none of the collected funds to Oak Brazil (*Id.* at 22:2-24:11 (CX0025-0027)).

In *Vanasia*, the request was denied because the respondent had “registered with the Commission as a foreign NVOCC and obtained the required financial responsibility,” bringing itself into compliance so that “future violations” were not “reasonably likely.” *Vanasia Trading Group, Inc.*, 2026 WL 2102013, at *28-*29 (FMC 2026). Oak Way is the exact opposite. It has not ceased, and rather than register or become licensed, it abandoned the one application that would have brought it into compliance.

Way2Go respectfully requests that the Commission order Oak Way Cargo LLC, together with its owners, officers, agents, servants, employees, successors, assigns, and all persons in active

concert or participation with it, to cease and desist permanently, effective immediately upon service of the Commission's order, from:

(1) acting as, or holding itself out as, an ocean transportation intermediary in the United States foreign commerce without a license issued by the Commission under 46 U.S.C. § 40901(a) and without furnishing the proof of financial responsibility required by law;

(2) issuing bills of lading and including house bills of lading; operating, using, or engaging the INTTRA platform to communicate with common carriers; and soliciting, quoting, accepting, arranging, or performing NVOCC or other ocean transportation intermediary services for compensation in the United States foreign commerce while unlicensed;

(3) soliciting, collecting, receiving, or retaining any freight charges, commissions, or other compensation for ocean transportation intermediary services rendered in the United States foreign commerce while unlicensed;

(4) using, invoking, displaying, referencing, or otherwise holding itself out under Complainant's FMC License No. 027779, or under Way2Go Cargo Corp's organization number, tariff, bond, or any other license or credential of Way2Go Cargo Corp, and otherwise representing that Oak Way Cargo Corp LLC or Oak Bridge Way LTDA or Oak Way Cargo LTDA is affiliated with, sponsored by, authorized by, or operating under Way2Go Cargo Corp; and

(5) invoking or relying upon the foreign NVOCC registration held by Oak Brazil [Oak Way Cargo LTDA, Reg. No. 035059], or upon any other person's license or registration, as a basis to conduct ocean transportation intermediary services in its own name in the United States.

Way2Go further requests that the Commission retain jurisdiction to enforce the order and to grant such further relief as may be necessary to secure compliance.

VI. Conclusion

The record evidence establishes each element of a violation of 46 U.S.C. § 40901(a). Oak Way is a person in the United States that held itself out and acted as an ocean transportation intermediary, operating as a non-vessel-operating common carrier in its own name while holding no license issued by the Commission. It advertised and solicited ocean transportation, charged and collected marked-up ocean freight rather than a forwarder's or agent's fee, assumed responsibility for the carriage, and stood as a shipper in its relationship with the underlying ocean carriers. Its characterization of itself as an "agent" of Oak Brazil does not withstand the record, and it cannot immunize conduct that is, in substance, that of an unlicensed carrier. Way2Go has carried its burden by a preponderance of the evidence.

That violation caused Way2Go actual injury within the meaning of 46 U.S.C. § 41305(b): the freight revenue Oak Way collected on shipments conducted under Way2Go's license and diverted into an account from which Way2Go was excluded. Way2Go's documented proofs of payment fix that injury at \$411,347.29, proved shipment by shipment to a reasonable certainty; the full \$707,264.46 that Oak Way invoiced is recoverable as well on the adverse inference arising from Oak Way's failure to produce payment records within its exclusive control. And because Oak Way remains engaged in unlicensed operation and withdrew the one application that would have brought it into compliance, its unlawful conduct is reasonably likely to continue, so cease-and-desist relief is warranted.

For the foregoing reasons, Way2Go respectfully requests that the Commission:

- (1) find that Oak Way violated 46 U.S.C. § 40901(a) by holding itself out and acting as an ocean transportation intermediary without a license issued by the Commission;
- (2) award Way2Go reparations for its actual injury under 46 U.S.C. § 41305(b) in an amount of not less than \$411,347.29, and up to \$707,264.46;

(3) award interest at commercial rates, compounded from the June 13, 2025, date of injury to the date of the Commission's order, under 46 U.S.C. § 41305(a) and 46 C.F.R. § 502.253;

(4) order Oak Way to cease and desist from operating as an unlicensed ocean transportation intermediary and from misusing Way2Go's license, on the terms set forth in Part V above;

(5) permit Way2Go to petition for its reasonable attorney's fees as the prevailing party under 46 U.S.C. § 41305(e) and 46 C.F.R. § 502.254; and

(6) grant such other and further relief as the Commission deems just and proper.

Dated: September 16, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at ron@hink.legal on this 16th day of September 2026.

BY: /s/ Jennifer Santos Roldan
Jennifer Santos Roldan, Esq.